

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

**JOINT STATUS REPORT 7 (MARCH 2026)
AND
JOINT MOTION AMENDING PROCEDURAL SCHEDULE**

Pursuant to 46 C.F.R. §502.141(h), the December 3, 2025 Second Amended Scheduling Order, (the “Order”) Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (“Respondents” or “OOCL,” and collectively with SEA, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report. As directed by the July 1, 2025 Scheduling Order, and the Order Following Second Conference of February 20, 2026 (“February 20 Order”), the Parties each report

on their respective discovery status.¹ As further required by the February 20 Order, the Parties jointly move for an order adopting the jointly proposed procedural schedule set forth below.

Complainant – Samsung Electronics America, Inc.

1. DISCOVERY:

a. Current Status

SEA has fully completed its production of documents and other discovery obligations as of November 24, 2025. To date, SEA has produced 240,155 documents comprising 1,058,752 pages.

To date, OOCL has produced 18,681 documents comprising 58,575 pages. SEA expects that OOCL will be making further production in the coming weeks as a result of the Discovery Conference held on February 20, 2026. SEA remains concerned that OOCL is still unreasonably limiting its searches for responsive documents, but will review OOCL's Declaration, when that document is filed in accordance with the order of the Presiding Officer.

b. Overview of Discovery and Motions Actions

SEA has continued to review and analyze the data produced thus far by OOCL despite the deficiencies noted in SEA's Motion to Compel Discovery. With respect to discovery and motions progress between the Parties since February 1st:

- **February 4, 2026:** SEA confirmed by letter, items which the parties discussed at their meet and confer on January 30, and which impact SEA's Motion to Compel Discovery.

¹ Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

- **February 13, 2026:** Judge Ambrow issued a Second Order Setting Status Conference for February 20, 2026.
- **February 19, 2026:** OOCL produced 880 documents, totaling 901 pages.
- **February 20, 2026:** Second Status Conference before Hon. Richard L. Ambrow. Later that day, Judge Ambrow issued an Order stating;
 - OOCL's Motion to Compel and SEA's Motion to Compel are both denied without prejudice;
 - OOCL is to produce to SEA a sworn declaration, no later than March 13, 2026, describing its document search process in detail as described in the Order;
 - That the parties are to continue providing monthly status reports until the close of discovery; and
 - That the parties make a joint motion to amend scheduling orders with their March 2, 2026, status report.
- **February 25, 2026:** The parties met to discuss a proposed schedule.
- **March 2, 2026:** SEA and OOCL met to further discuss JSR 7.

2. PENDING MOTIONS

a. Petition for Attorney's Fees

On January 26, 2026, SEA submitted a Petition for Attorney's Fees for the work associated with responding to OOCL's Counterclaims, including the Motion to Dismiss the Counterclaim, the Reply to the Opposition to the Motion to Dismiss, the Opposition to OOCL's Appeal of the Dismissal of the Counterclaim, the Motion to Dismiss the Amended Counterclaim, and the Reply to OOCL's Opposition to the Motion to Dismiss the Amended Counterclaim. SEA requested OOCL's position with respect to a Motion to Supplement its Petition for Attorney Fees on

February 25, 2026, as previewed in the Declaration of Peter F. Black. OOCL advised that it opposes the Motion on February 26th. That Motion is expected to be filed on March 2, 2026.

3. MEDIATION

On December 15, 2025, SEA proposed a mediator to OOCL, who agreed to consider the proposed mediator. OOCL has not yet confirmed its position on that proposed mediator.

4. PROPOSED SCHEDULE

On February 25, 2026, the Parties met to confer with respect to a draft procedural schedule and have agreed on the proposed schedule appearing below.

Respondents - Orient Overseas Container Line Limited and OOCL (Europe) Limited

Since the last Joint Status Report filed February 2, 2026, (JSR6), Respondents report the following activity of the Parties.

Subsequent to the conference of February 20, 2026, the Parties met to confer on February 25, and again on February 27.

A. Discovery

1. Respondents' Supplemental Responses to Complainant's Discovery Requests

Since the last Status Report dated February 2, 2026, Respondents have made the following additional responses and productions.

On February 19, 2026, Respondents made its eighth production of documents consisting of the last-issued arrival notices for the bills of lading/sea waybills identified by Complainant in 24-17_SEA_00059845, which was served by SEA on November 13, 2025. SEA's delay in identifying the shipments that comprised its claim required OOCL to re-run these collections and

searches, and has caused OOCL to incur additional expense and unnecessary delay in completing its document production.

Out of an abundance of care, OOCL has collected an additional several million documents from additional previously unidentified custodians or shared mailboxes as cc'd in correspondence SEA had produced. It is now processing that new collection and will produce any responsive, non-privileged documents it identifies.

In order to avoid further disputes with respect to the process or scope of OOCL's review and production of documents, Respondents provided the search terms they had used, and requested Complainant supplement those terms, should it believe them inadequate. On February 27, 2026, Respondents provided a list of search terms that it had used to Complainant and requested Complainant's comments on those terms no later than March 3, 2026.

While they will of course seek to confer again with Complainant, as instructed by the Presiding Officer, Respondents anticipate that they may be required to revive their motion to compel Complainant to respond to Interrogatory Nos. 10 and 11 and to seek an expedited ruling on that motion, if Complainant has not provided adequate responses prior to the initiation of depositions. It is no longer early in discovery; millions of pages of discovery has been produced and the Parties are preparing for depositions. Responses to these two interrogatories, which the Presiding Officer alluded were contention interrogatories, must be provided before depositions. Indeed, without such a response, it is unclear to Respondents how they might determine which witnesses have knowledge that is worth exploring at depositions. The initiation of depositions without responses to these interrogatories will not only lead to the undue increase in time and expense in discovery in this proceeding, including the deposition of witnesses who may not have

relevant information, allowing depositions to proceed without such information will also prejudice Respondents.

2. Deficiencies Alleged in Both Parties' Motions to Compel

As directed by the Presiding Officer, the Parties have taken the following steps to address deficiencies alleged in each of the motions to compel considered and denied without prejudice by the Order of February 20, 2026.

a. Complainant's Alleged Deficiencies

Complainant has provided no further information with respect to Respondents' request that it identify documents responsive to its discovery requests or further productions or supplements to indicate where in the production documents it purports to rely upon in response to interrogatories may be located.

To date, Complainant has not provided any supplemental responses to Respondents' Interrogatory Nos. 10 and 11.

b. Respondents' Alleged Deficiencies

i. Document Production

OOCL has collected documents from seven additional custodians, all unnamed in either Party's initial disclosures and not previously designated as knowledgeable or possessing responsive documents, as alleged by SEA's Motion to Compel filed January 23, 2026. OOCL is now in the process of reviewing the additional documents for any responsive material.

As reflected above, to avoid any further delays in this proceeding, Respondents requested that Complainant review and agree on the search terms Respondents use to search the millions of documents it has collected with possibly relevant communications.

ii. Responses to Interrogatories

Respondents intend to serve supplemental responses to Complainant's Interrogatory Nos. 3, 5, 8; and 18; and Request for Production No. 11.

B. Mediation Procedural Schedule

Respondents remain willing to mediate the dispute, but to date the Parties have not reached any agreement to do so.

C. Draft Procedural Schedule.

On February 25, 2026, the Parties met to confer with respect to a draft procedural schedule and have agreed on the proposed schedule appearing below.

Joint Proposed Discovery Schedule

As requested by the Presiding Officer, the Parties have met and conferred with respect to an updated procedural schedule. The Parties submit that the schedule proposed is reasonable in light of the size, scope and complexity of the matter and that good cause therefore exists to adopt the schedule as proposed.

As instructed by the Presiding Officer, document production will continue. The proposed schedule will allow adequate time for the Parties to review and confer in the hopes of avoiding any further discovery motions.

Fact witness depositions may total up to 27, with SEA expecting that it may depose up to 19 witnesses and OOCL anticipates no more than 8. In light of the total number of depositions expected, the Parties submit that taking more than two depositions each week renders the Parties' request for a total of 13 weeks reasonable. It is unclear at this time how many experts (and therefore expert reports and depositions and rebuttal expert reports and depositions) will be submitted by the Parties.

The Parties jointly propose the following procedural schedule:

Event	Joint Proposal
Production of documents completed	April 30, 2026
Deposition notices may begin to be served	May 15, 2026
Complete fact witness depositions	July 31, 2026
Service of Expert Reports by Complainant	August 14, 2026
Service of Expert Rebuttal Reports by Respondents	September 11, 2026
Completion of Expert Depositions	October 9, 2026
Discovery completed	October 16, 2026
Complainant's brief, proposed findings of fact, and appendix	November 6, 2026
Respondent's brief, responses to proposed finding of fact, proposed findings of fact, and appendix	December 4, 2026
Complainant's reply brief and responses to proposed findings of fact	December 18, 2026

Dated: March 2, 2026

MILLS BLACK LLP

By: /s/ **Peter F. Black**

Peter F. Black
H. Allen Black
Imran O. Shaukat
Kathryn Fitzgerald
1215 19th Street NW,
Washington, D.C. 20036
Telephone: (202) 987-4100
Email: pblack@millsblack.com
Email: hallenblack@millsblack.com
Email: ishaukat@millsblack.com
Email: kfitzgerald@millsblack.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

COZEN O'CONNOR, P.C.

By: /s/ **Christopher Raleigh**

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz
2001 M Street Northwest, Floor 5
Washington, DC 20036
Telephone: 202-463-2507
Facsimile: 202-640-5912
Email: wrohde@cozen.com
Email: craleigh@cozen.com
Email: ksobotta@cozen.com
Email: rschwartz@cozen.com
*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

Respectfully Submitted,

**JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC**

By: /s/ **Rebecca A. Fenneman**

Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb
700 12th Street, NW Suite 700
Washington, DC 20005
Email: RFenneman@JeffreyFenneman.com
Email: KMassey@JeffreyFenneman.com
Email: NWebb@JeffreyFenneman.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. MILLS BLACK LLP
Counsel for Complainant
 - a. Peter F. Black (pblack@millsblack.com)
 - b. Allen Black (hallenblack@millsblack.com)
 - c. Imran O. Shaukat (ishaukat@millsblack.com)
 - d. Kathryn Fitzgerald (kfitzgerald@millsblack.com)
4. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents and Third-Party Complainants
 - a. Rebecca A. Fenneman (RFenneman@JeffreyFenneman.com)
 - b. Kaya C. Massey (KMassey@JeffreyFenneman.com)
 - c. Nicholas L. Webb (NWebb@JeffreyFenneman.com)
5. COZEN O'CONNOR
Counsel for Respondents and Third-Party Complainants
 - a. Wayne R. Rohde (wrohde@cozen.com)
 - b. Christopher Raleigh (craleigh@cozen.com)
 - c. Rachel Schwartz (rschwartz@cozen.com)
 - d. Kathryn Sobotta (ksobotta@cozen.com)

Dated: March 2, 2026

By: /s/ Christopher Raleigh